

STATE OF NEW YORK

3411--B

2025-2026 Regular Sessions

IN ASSEMBLY

January 27, 2025

Introduced by M. of A. VANEL, OTIS -- read once and referred to the Committee on Science and Technology -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee -- reported and referred to the Committee on Codes -- reported and referred to the Committee on Rules -- Rules Committee discharged, bill amended, ordered reprinted as amended and recommitted to the Committee on Rules

AN ACT to amend the general business law, in relation to requiring notices on generative artificial intelligence systems

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

Section 1. The general business law is amended by adding a new section 399-zzzzzz to read as follows:

§ 399-zzzzzz. Notices on generative artificial intelligence systems.
1. As used in this section the following terms shall have the following meanings:

(a) "Generative artificial intelligence system" shall mean a class of artificial intelligence models that are self-supervised and emulate the structure and characteristics of input data to generate derived synthetic content, including, but not limited to, images, videos, audio, text and other digital content.

(b) "Artificial intelligence" shall mean a machine-based system that can, for a given set of human-defined objectives, make predictions, recommendations, or decisions influencing real or virtual environments, and that uses machine- and human-based inputs to perceive real and virtual environments, abstract such perceptions into models through analysis in an automated manner, and use model inference to formulate options for information or action. This definition includes but is not limited to systems that use machine learning, large language model, natural language processing, and computer vision technologies, including generative AI.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets [-] is old law to be omitted.

LBD01087-04-5

1 2. The owner, licensee or operator of a generative artificial intelli-
2 gence system shall clearly and conspicuously display a notice on the
3 system's user interface that the outputs of the generative artificial
4 intelligence system may be inaccurate.

5 3. Where such owner, licensee or operator of a generative artificial
6 intelligence system fails to provide the notice required in subdivision
7 two of this section, such owner, licensee or operator shall be assessed
8 a civil penalty up to one thousand dollars for each violation. Each user
9 the owner, licensee or operator fails to provide a notice to shall
10 constitute a separate violation for each instance.

11 § 2. This act shall take effect on the ninetieth day after it shall
12 have become a law.